

HOUSE No. 5295

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to regulation of minors on social media.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>2/18/2026</i>

HOUSE No. 5295

By Representative Kushmerek of Fitchburg, a petition (subject to Joint Rule 12) of Michael P. Kushmerek for legislation to further regulate social media accounts for persons under 16 years of age. Advanced Information Technology, the Internet and Cybersecurity.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to regulation of minors on social media.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws, as appearing in the 2024 Official Edition, are hereby
2 amended by inserting after chapter 93L the following chapter:

3 Chapter 93M. Social Media Regulations for Minors.

4 Section 1. (a) For the purpose of this section “social media” means a website or internet
5 medium that— (i) permits a person to become a registered user, establish an account, or create a
6 profile for the purpose of allowing users to create, share, and view user-generated content
7 through such an account or profile; (ii) enables 1 or more users to generate content that can be
8 viewed by other users of the medium; (iii) primarily serves as a medium for users to interact with
9 content generated by other users of the medium; and (iv) excludes online platforms, including
10 sites that provide primarily videoconferencing, emailing, or educational services.

11 (b) For the purpose of this section “child” shall mean a Massachusetts resident under the
12 age of 16.

(c) A social media platform shall not allow individuals to create or maintain an account or profile if they are under the age of 16. A provider of such a platform must take reasonable steps to prevent children who have not reached a minimum age of 16 from having accounts.

(d) For children under the age of 16 with existing social media accounts, the social media platform shall terminate such accounts.

(e) The creation of a new social media account must be accompanied by documentation supporting age verification to the corresponding social media platform. Documentation supporting age verification shall consist of a birth certificate or valid government issued identification. This shall be a one-time or non-recurring verification. A social media platform will make reasonable attempts to verify the veracity of age and name provided in the documentation. Social media platforms shall not retain copies of identification documents after verification and shall not use such information for any purpose other than age verification.

(f) A verification system that has obtained personal data about a consumer from a source other than the consumer shall be deemed in compliance with a consumer's request to delete such data by deleting the consumer's personal data retained by the system and not using such retained data for any other purpose pursuant to this chapter.

(g) Immediately upon the effective date of this chapter, the attorney general shall be in charge of compliance and may bring an action or special proceeding in the name and on behalf of the people of the commonwealth to enjoin any violation of this chapter.

Section 2. This chapter shall take effect immediately upon its passage.